

HCS HBs 2139 & 2175 -- APPLICATION OF FOREIGN LAW

SPONSOR: Jordan

COMMITTEE ACTION: Voted "Do Pass with HCS" by the Special Committee on Intergovernmental Affairs by a vote of 10 to 2. Voted "Do Pass" by the Standing Committee on Rules-Legislative by a vote of 9 to 2.

The following is a summary of the House Committee Substitute for HBs 2139 & 2175.

This bill prohibits the application of any foreign law, legal code, or system that denies fundamental liberties, rights, and privileges guaranteed under the U.S. Constitution or the Constitution of this State. Any legal document or court decision that purports to apply such a foreign law, legal code, or system must be void and unenforceable.

The provisions of this bill do not:

- (1) Disapprove or abrogate existing precedent of the Missouri Supreme Court;
- (2) Limit adjudication of ecclesiastical matters of a religious organization, including the selection, appointment, discipline, or removal of clergy or interpretation of doctrine;
- (3) Apply to corporations, partnerships, or associations that voluntarily subject themselves to foreign law or courts; or
- (4) Apply where Federal law preempts State law, including obligations under treaties or international agreements.

No state court, arbitration panel, tribunal, or administrative agency will transfer any civil actions if such transfer would result in the application of any foreign law, legal code, or system that would violate or likely violate the fundamental liberties, rights, and privileges guaranteed under the U.S. Constitution or Missouri Constitution.

This bill is similar to HB 2175 (2026).

The following is a summary of the public testimony from the committee hearing. The testimony was based on the introduced version of the bill.

PROPONENTS: Supporters say that in certain areas of the State, the concentration of the population has become very dense with some religions, and everyone should want to stop the application of foreign laws. It should not supersede any State law or the Constitution. This is becoming a trend in European countries, and any reasonable person would assume if it's the intent in Europe it will eventually be the intent here. There's a world of difference between an individual choosing to restrict themselves personally versus attempting to extend that to others. Islamic communities are attempting to do this in many northern European countries now. Shari'a law is very scary. The origin and intent both. Shari'a law should be practiced in the privacy of one's own home and should not be comingled with the government.

Testifying in person for the bill were Representative Jordan; and Arnie Dienoff.

OPPONENTS: Those who oppose the bill say that the legislation is not needed at all. We already have to follow the State and Federal Constitutions. This legislation is bigotry in search of a problem. The singling out of a religious group is a problem, and the targeting of Muslims puts religious discrimination on the table for everyone. Christian nationalism is more concerning than Shari'a law for the affect it is having on America.

Testifying in person against the bill was Brian Kaylor, Word&Way.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.